



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUN 20 2002

DOT-E 12945

EXPIRATION DATE: **May 31, 2004**

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Duratek Services, Inc.
Columbia, SC
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of five steam generator lower assemblies and one pressurizer from the Duratek processing facility in Memphis, TN to the Envirocare of Utah low level waste facility near Clive, UT. This exemption authorizes the steam generator lower assemblies (SLGA) and pressurizer to be classified as surface contaminated objects, class II (SCO-II), and transported as non-specification packages under a transport plan which provides an equivalent level of safety to the packages and procedures specified in Title 49 of the Code of Federal Regulations. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.403 in that the fixed and non-fixed contamination levels for surface contaminated objects, class II, (SCO-II) are waived for the components specified in the exemption application.

JUN 20 2002

b. 49 CFR § 173.427(a) in that the requirement that SCO-II must be transported in authorized packaging is waived. The components specified in the exemption application are authorized to be transported as non-specification packages under a specified transport plan.

5. BASIS: This exemption is based on the application of Duratek Services, Inc. (Duratek) dated February 8, 2002 submitted in accordance with 49 CFR § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, surface contaminated objects (SCO-II) <i>non fissile or fissile excepted</i>	7	UN2913	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Under the provisions of this exemption, the SGLA and pressurizer are considered to be non-specification packages which, when transported in accordance with the Duratek transport plan, provide an equivalent level of safety to the packaging authorized under the HMR.

(2) The contamination levels and radionuclides present on each component must be consistent with the levels identified in Duratek's application.

(3) To maximize radiation protection, each component must be prepared for shipment by welding or bolting shut all nozzles, instrument penetrations and mechanical enclosures using closure plates. Prior to shipment, contamination surveys will be conducted. All areas with loose contamination that is in excess of DOT requirements (22 dpm/cm² for Beta & Gamma; 2.2 dpm/cm² for Alpha) will be decontaminated or will be treated with a fixative and/or paint.

JUN 20 2002

(4) All lifting mechanisms must be removed or rendered inoperable.

b. OPERATIONAL CONTROLS -

(1) The components must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) All controls, provisions and routes specified in transportation plan submitted as Attachment 6 to the original application must be followed.

c. COMMUNICATION -

(1) The package must be plainly and durably marked "DOT-E-12945" in accordance with § 172.301(c).

(2) The package must be marked, labeled, placarded in accordance with the provisions of § 173.427(a)(6) for SCO required to be shipped as exclusive use. If appropriate, the package must also be stenciled with the letters "RQ".

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the packages are offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

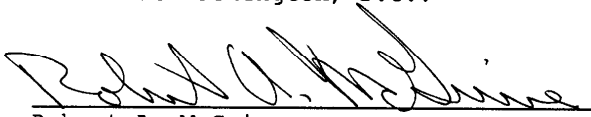
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JUN 20 2002

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RBoyle